

JUDGE GARDEPHE

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

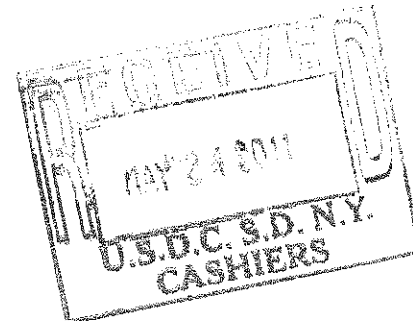
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BESIM SINANOVIC,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. TIMOTHY
CANIFF (Shield # 04868), P.O. MATTHEW
FIALOKOVIC (Shield # 13757) and P.O.s
"JOHN DOE" #1-5 (said names being fictitious,
as the true names are presently unknown),
Individually and in their Official Capacities.

Defendants.
-----X



COMPLAINT
AND DEMAND FOR
JURY TRIAL

Plaintiff Besim Sinanovic ("Plaintiff" or "Sinanovic"), by his attorney, Kim E.
Richman, complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

Plaintiff brings this action for compensatory damages, punitive damages and
attorney's fees pursuant to 42 U.S.C. §§ 1983, 1988, for the wrongful acts of defendants
THE CITY OF NEW YORK, P.O. TIMOTHY CANIFF, P.O. MATTHEW
FIALOKOVIC and P.O.s "JOHN DOE" #1-5 (said names being fictitious, as the true
names are presently unknown)("Defendant" or "Defendants") all acting under color of

state law and pursuant to their authority, in violation of Plaintiff's rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

1. This action is brought pursuant to 42 U.S.C. §§ 1983, 1988, and the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.
2. Jurisdiction is invoked herein pursuant to the aforementioned statutory and constitutional provisions, and pursuant to 28 U.S.C. §§ 1331, 1343, this being an action seeking redress for the violation of Plaintiff's constitutional and civil rights.
3. Plaintiff further invokes this Court's pendent jurisdiction over any and all state law claims and causes of action which derive from the same nucleus of operative facts that give rise to the federally based claims and causes of action pursuant to 28 U.S.C. § 1367.

VENUE

4. Venue is properly laid in this District under 28 U.S.C. § 1391(b), this being the District in which the claim arose.

TRIAL BY JURY

5. Plaintiff demands a trial by jury on each and every one of his claims as pled herein pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. At all times relevant hereto, Plaintiff Besim Sinanovic, was a resident of New York and was a 25 year-old male at the time of the incident.

7. At all times relevant hereto, Defendant THE CITY OF NEW YORK ("NYC") is a municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department, which employs the other named Defendants.

8. At all times relevant to this action, Defendants P.O. TIMOTHY CANIFF, P.O. MATTHEW FIALOKOVIC and P.O.s "JOHN DOE" #1-5 (said names being fictitious, as the true names are presently unknown), are and were police officers employed by the New York City Police Department ("NYPD"), and acting under color of state law.

9. At all times relevant hereto and in all their actions described herein, said Defendants were acting under color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and NYC, pursuant to their authority as employees, servants and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents and police officers.

10. NYC was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants and/or employees of the NYPD.

FACTS

11. During the early morning hours of September 9, 2010, in the Bronx, New York, Plaintiff Besim Sinanovic, was illegally apprehended by the NYPD while he was on his way to work.

12. As Mr. Sinanovic was walking to work Defendant Officer Matthew Fialokovic stopped Plaintiff without probable cause.

13. Defendant police officers allegedly witnessed Plaintiff withdrawing an untaxed package of cigarettes from his pants pocket that supposedly missing a small tax stamp on the underside of the packaging.

14. Shortly thereafter, Defendant placed Plaintiff in handcuffs despite the absence of any criminal wrongdoing.

15. On or about September 12, 2010, Plaintiff was released from custody because the Bronx District Attorney's Office declined to prosecute the matter. Due to lack of evidence, the People would have been unable to meet their burden of proof at trial.

16. As a result of the false claims against Plaintiff, he spent approximately four (4) days in custody.

**FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

17. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.

18. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under color of state law.

19. All of the aforementioned acts deprived Plaintiff Besim Sinanovic of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

20. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

21. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices,

procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

22. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

23. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually liable.

**SECOND CLAIM FOR RELIEF:
CONSPIRACY TO VIOLATE CIVIL RIGHTS**

24. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.

25. All of the aforementioned Defendants conspired to violate Plaintiff's civil rights by agreeing among themselves to use excessive force in dealing with the Plaintiff and to falsely charge Plaintiff with crimes and testify falsely, as described above, in violation of 42 U.S.C. § 1985, for which the Defendants are individually liable.

THIRD CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983

26. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.

27. As a result of Defendants' aforementioned conduct, Plaintiff Besim Sinanovic, was subject to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege or consent.

28. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety and subjected to handcuffing and other physical restraints, without probable cause.

29. As a result of his false arrest, Plaintiff was subjected to humiliation, ridicule and disgrace before his family, neighbors and peers. Plaintiff was discredited in the minds of many members of his community.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

30. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.

31. Defendants were directly and actively involved in the initiation of criminal proceedings against the Plaintiff.

32. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

33. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.

- 34. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.
- 35. Defendants acted with malice in continuing criminal proceedings against Plaintiff.
- 36. The criminal proceedings against Plaintiff were terminated in favor of Plaintiff on October 29, 2010.

FIFTH CLAIM FOR RELIEF:
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

- 37. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.
- 38. Defendants issued legal process to place Plaintiff under arrest.
- 39. Defendants arrested Plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.
- 40. Defendants acted with intent to do harm to Plaintiff without excuse or justification.

SIXTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY

- 41. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.
- 42. Defendants P.O. TIMOTHY CANIFF, P.O. MATTHEW FIALOKOVIC and P.O.s "JOHN DOE" #1-5 (said names being fictitious, as the true names are presently unknown), violated the constitutional rights of Plaintiff Besim Sinanovic, despite a complete lack of cause against him, notwithstanding their knowledge that said violations would jeopardize Plaintiff's liberty, well-being, safety and civil liberties.

43. The acts complained of were committed by the individual Defendants in their capacities as police officers and officials, with the entire actual and/or apparent authority attendant thereto.

44. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

45. The aforementioned customs, policies, usages, practices, procedures and rules of NYC and the NYPD included, but were not limited to, initiating and continuing criminal proceedings without evidence of criminal activity.

46. The foregoing customs, policies, usages, practices, procedures and rules of NYC and the NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff Besim Sinanovic.

47. The foregoing customs, policies, usages, practices, procedures and rules of NYC and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff Besim Sinanovic, as alleged herein.

48. The foregoing customs, policies, usages, practices, procedures and rules of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff Besim Sinanovic, as alleged herein.

49. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff Besim Sinanovic.

50. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.

51. Defendant NYC, as municipal policymaker in the training and supervision of Defendant police officers, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violation of their right to freedom from the use of excessive and unreasonable force in violation of the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

52. All of the foregoing acts by Defendants deprived Plaintiff Besim Sinanovic, of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To be free from unlawful imprisonment;
- d. To be free from unwarranted and malicious criminal prosecution;
- e. To be free from infliction of emotional distress;
- f. Not to have cruel and unusual punishment imposed upon him; and
- g. To receive equal protection under the law.

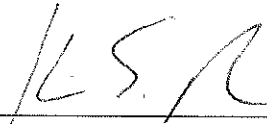
PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the Defendants:

1. Special and compensatory damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS;
2. Punitive damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS;
3. Reasonable attorney's fees and costs; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
May 23, 2011

Respectfully submitted,



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